

26PR00306 Matter of Charles Joseph Messana Trust

County: sonoma

Division: Probate

Hearing date: 2026-06-26

Motion: Petition for Breach of Trust, for Surcharge, to Suspend and Remove Trustee, and Appoint a Successor Trustee

Source URL: <https://sonoma.courts.ca.gov/online-services/tentative-rulings/probate-tentative-rulings/trust-tentative-rulings>

Source SHA-256: 5338ab37da0abc3af1c4cc6813dfd1a68dfefe6ed55af3750155fe88bf1ba60c

Matter of Charles Joseph Messana Trust

26PR00306

Petition for Breach of Trust, for Surcharge, to Suspend and Remove Trustee, and Appoint a Successor Trustee

Tentative Ruling: This matter is CONTINUED to October 16, 2026 at 9:30 a.m. in Department 12 for the reasons set forth below.

Charles Joseph Messana filed this petition on March 10, 2026. Russell C. Messana filed his response and objections on June 18, 2026. Deborah Wagner filed her response and objections on June 22, 2026. As this is now a contested matter, the parties are ordered to meet and confer in compliance with local rule 6.2.F.2 and file statements of issues at least seven (7) court days in advance of the continued hearing, as requires by local rule 6.2.F.3.

A primary aspect of this case is the petitioner's complaint that the trustee took a loan for \$500,000.00, secured against trust real property, to fund litigation. The petitioner questions the need for the litigation, whether the litigation efforts will result in a benefit to the trust, and asserts the litigation has been for the trustee's and her attorney's personal gain. Without knowing the outcome of the pending appeal in the civil matter, and without attempting to decide the issues on appeal itself, the Court is not in a position to assess whether taking a \$500,000.00 loan for funding litigation, or other actions related to the litigation, were breaches of a fiduciary duty. The outcome of the appeal will necessarily affect the Court's analysis of these issues. Therefore, these issues are embraced in or affected by the pending appeal in the civil case and thus are automatically STAYED pending appeal. See CCP § 916(a).

The Court questions whether the other issues raised in the petition (i.e. other factual bases for breach of trust and removal) that may not be directly embraced in or affected by the appeal are so inextricably intertwined with the facts of the case that are on appeal that they may be also subject to stay. If not, the Court does have jurisdiction to proceed on those issues. CCP §§ 916(a)&(b). Also see *Hollaway v. Scripps Memorial Hospital* (1980) 111 Cal.App.3d 719, 723. Whether the petitioner would have the Court sever the stayed issues and proceed on other issues pending appeal, and what those issues are, whether judicial economy is served thereby, or whether the entire action is stayed, should be addressed in the parties' statements of issues filed in advance of the continued hearing pursuant to local rule 6.2.F.3, and should be discussed during the meet and confer efforts made pursuant to local rule 6.2.F.2.

To the extent any party asserts that certain issues in this case can be decided as a matter of law if not stayed, or after a stay is lifted, the Court would require a mechanism to address them that gives all parties an opportunity to file briefs and be heard, such as a noticed motion. The parties should discuss the most economical way to address any such issues as part of their meet and confer efforts.

The allegations of wrongdoing by the trustee are not sufficient to show that immediate suspension is necessary to prevent loss or injury to the interests of a beneficiary pending a decision on removal and any appellate review, so the request to suspend the trustee is DENIED. Prob C §15642(e).